

25NWCV02740 25NWCV02740

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Case Number: 25NWCV02740 Hearing Date: July 28, 2026 Dept: L

M. GARCIA A MINOR BY AND THROUGH HIS GUARDIAN AD LITEM

MARIA GARCIA, et al. vs NABOR RIOS, et al.

CASE NO.: 25NWCV02740

HEARING: July 28, 2026 @ 9:30

a.m.

#13

TENTATIVE ORDER

Non-party City of Bell Gardens'

Motion to Quash Subpoena is DENIED.

Plaintiffs to give notice.

Background

This is an action for assault and battery. On July 29, 2025, Plaintiffs M. Garcia, a minor by and through his Guardian ad Litem Maria Garcia, Nicolas Garcia, and Maria Garcia ("Plaintiffs") filed this action against Defendants Nabor Rios ("Rios"), The Roman Catholic Archbishop of Los Angeles ("Archbishop"), St. Gertrude the Great Catholic Church ("St. Gertrude Church"), and Does 1 to 100. The Complaint alleges that Defendant Rios was the priest at Plaintiffs' church, St. Gertrude the Great Catholic Church. On January 24, 2025, Plaintiff Maria Garcia, took her son, M. Garcia, to the rectory so that Defendant Rios could "counsel her son about his

behavior at school earlier that same day.” (Compl., ¶ 20.) When Maria left the room, Defendant Rios “started screaming profanities at M. GARCIA as soon as his mother left, slapped him in the face with both hands and punched him in the chest” and “then pushed M. GARCIA and made him kneel in front of MARIA and apologize for his actions.” (Compl., ¶¶ 22, 27.) Defendant Rios also yanked Plaintiff Maria Garcia’s Portable Oxygen Concentrator from her. When Plaintiff Garcia left and returned to the rectory with Plaintiff Nicolas Garcia, her husband, Defendant Rios started screaming profanities at Nicolas about his extramarital affair which he had told Rios about during a sacramental confession. On January 25, 2025, Defendant Rios was arrested by Bell Gardens Police Department officers.

The Complaint alleges the following causes of action:

1.
Negligent Supervision (against Archbishop and St. Gertrude Church)
2.
Assault (against all Defendants)
3.
Battery (against all Defendants)
4.
Intentional Infliction of Emotional Distress (M. Garcia against all Defendants)
5.
Gross Negligence (against all Defendants)
6.
False Imprisonment (against all Defendants)
7.
Intentional Infliction of Emotional Distress (Maria Garcia against all Defendants)
- 8.

Gross Negligence (Maria Garcia against all Defendants)

9.

Assault (Maria Garcia against all Defendants)

10.

Battery (Maria Garcia against all Defendants)

11.

Intentional Infliction of Emotional Distress
(Nicolas Garcia against all Defendants)

12.

Gross Negligence (Gross Negligence (Maria Garcia against all Defendants)

On January 26, 2026, Plaintiff issued a Deposition Subpoena ("Subpoena") to City of Bell Gardens Police Department. (Payne Decl., ¶ 2, Exh. A.)

Non-party City of Bell Gardens ("the City") now moves to quash the Subpoena.

Legal Standard

Code of Civil Procedure section

1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically

stored information, or other

things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).)

"In addition, the court may make

any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Ibid.) Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). (Code Civ. Proc., § 1987.1, subd. (b).)

Discussion

The City explains that

Plaintiff's Subpoena seeks: "All Body Worn Camera records of the arrest of Mr. RIOS; the interview room interrogation video footage with respect to Mr. RIOS; body worn camera footage of Bell Gardens' Police Officers questioning of Plaintiff's mother and other presumed witnesses; and written statements." (See Payne Decl., ¶ 2, Exh. A, Attachment "3".)

The City cites Evidence Code

section 1040 in arguing that a public entity may refuse disclosure of confidential information if disclosure is against public interest. Here, the City argues that disclosure of the subject records would interfere with an active criminal investigation and "undermine the criminal process, risk witness/victim intimidation or reluctance, and publicly expose sensitive material involving a child victim." (Mot., 4:21-22.) The City further cites Government Code section 6254, subdivision (f), which codifies the law-enforcement investigatory exemption under the California Public Records Act (CPRA). Lastly, the City further argues that the constitutional right of privacy for minor victims weighs against disclosure.

Alternatively, the City requests that the Court impose

protective conditions on any ordered disclosure, including 1) deferral of production until completion of criminal investigation or prosecution, 2) an in camera review before any production, 3) attorneys' "eyes only" designation, 4) redaction or blurring of the minor and any uninvolved persons, and 5) and prohibition on public filing or use outside this action.

In opposition, Plaintiffs argue

that Government Code section 6254 has been repealed and is thus inapplicable. To the extent the City invokes privacy concerns, such arguments are meritless because the minor here is requesting videos of his own assault. Further, all parties referenced in the subject records are known in this action. Lastly, as

to Evidence Code section 1040, Plaintiffs assert that the videos and statements are not confidential because the City has already produced the investigation report (Pacheco Decl., ¶ 4, Exh. 1), which was created based on such records. In other words, the investigation report is essentially a summary of the videos and statements. Plaintiffs argue that the key witness' "physical reactions, tone of voice, enunciation of words, and overall demeanor cannot be evaluated (or seen) by Plaintiff's counsel in the written report." (Opp., 7:12-14.) Lastly, there is no ongoing criminal investigation because, based on the investigation report, Detective Robert Lopez forwarded the case to the Los Angeles County District Attorney's office. There is no evidence that there is a pending criminal prosecution.

In reply, the City reiterates that confidentiality interests outweighs Plaintiffs' need for disclosure. The City indicates that it will be proposing that the parties stipulate to the LASC Form Protective Order.

The Court first notes that Government Code section 6254 has been repealed by A.B. 473 of 2021, which went into effect January 1, 2023. The City has failed to meet its burden in showing that an exception of the CPRA applies. (See *Edais v. Superior Court* (2023) 87 Cal.App.5th 530, 538 ["A public agency seeking to withhold a record from disclosure bears the burden of demonstrating that an exception to the CPRA's disclosure directive applies."].)

The Court next addresses Evidence Code section 1040, subdivision (b)(2). Under that provision, test is whether the necessity for preserving the confidentiality of the information outweighs the necessity for disclosure in the interest of justice. (See Evid. Code, §1040, subd (b)(2); see also *People v. Landry* (2016) 2 Cal.5th 52, 73.)

However, in consideration of all factors, the Court finds that the need for discovery outweighs any confidentiality concerns under Evidence Code section 1040, subdivision (b)(2). The Court finds that the subject records are relevant to proving Plaintiffs' claims, and Plaintiffs are unable to obtain such information through other means.

The Court acknowledges that "[e]vidence gathered by police as part of an

ongoing criminal investigation is
by its nature confidential." (County of Orange v. Superior Court (2000)
79 Cal.App.4th 759, 764.) However, the City offers no evidence that there is a
currently pending criminal investigation surrounding the incident. The City
only notes that Defendant Rios is "participating in a diversion program."
(Reply, 3:16-17.)

The Court further finds that
privacy issues and other confidentiality concerns can be addressed via the
parties' stipulation to the LASC Form Protective Order.

Accordingly, the City's Motion to
Quash Deposition Subpoena is denied.

The parties' are encouraged to
meet and confer regarding a stipulated protective order.